

24STCV24206 24STCV24206

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-07

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Case Number: 24STCV24206 Hearing Date: August 7, 2026 Dept: 510

No. 1 – MF Downtown Properties LLC v.

Make Spaces LLC

Plaintiff MF Downtown

Properties LLC's Request for Default Judgment

Plaintiff MF Downtown

Properties LLC requests court judgment by default against Defendants Diamond Enterprise LLC and Robert Johnson. Plaintiff's application for default judgment still suffers multiple defects.

Insufficient Factual Allegations

Against Defendant Diamond Enterprise LLC

First, Plaintiff has not

shown sufficient grounds for court judgment against Defendant Diamond Enterprise LLC. The complaint concerns a contract entered between Plaintiff and Defendant Make Spaces, LLC—a party that has since been dismissed. Defendant Robert Johnson signed a guaranty and is therefore personally liable under the contract. However, Defendant Diamond Enterprise LLC did not sign the contract.

“Under the ‘well pleaded’

complaint rule, it is error to enter a default judgment on a complaint that fails to state a cause of action against the defaulting defendant.” (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 539.)

In the complaint,

Plaintiff alleges:

Diamond Enterprises LLC's income, financial records, bank statements, proof of business contacts etc. was provided to PLAINTIFF as evidence of Make Spaces ability to pay the monthly rent. The Lease was entered into by MAKE SPACES, guarantor JOHNSON with DIAMOND ENTERPRISES LLC providing their financial records, bank statements, etc. as support and proof that MAKE SPACES will be able to pay the rent. Robert Johnson is not only involved in all entities, but is the owner/managing member of these entities and personal guarantor of the Lease. Among other factors, there is clearly a unity of ownership and interest, co-mingling, and the same owner.

(Compl., ¶ 9.)

These allegations of alter ego liability are insufficient to prove liability. To obtain judgment against Defendant Diamond Enterprise LLC, Plaintiff should provide additional evidence showing that this corporate entity is indeed an alter ego of the other parties to the contract and is in some manner responsible for the amounts sought.

Excessive Damages

Plaintiff requests

default judgment for \$112,400 in damages. "A default judgment greater than the amount specifically demanded in the complaint is void as beyond the court's jurisdiction." (Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc. (2018) 23 Cal.App.5th 1013, 1018 (Airs Aromatics).) The complaint's prayer for relief seeks \$100,000. (See Compl., prayer, ¶ 1.)

To recover the damages

Plaintiff requests, it must amend the complaint to specifically demand that amount. Doing so would vacate Defendant's default. After a plaintiff "file[s] an amended complaint praying for a different amount of damages and/or other appropriate relief... she must serve her amended complaint on defendants, who will be entitled to file a new answer; all issues will then be at large, including liability." (Greenup v. Rodman (1986) 42 Cal.3d 822, 830; accord Airs Aromatics, supra, 23 Cal.App.5th at p. 1025 [filing amended complaint vacates default].) Any amended complaint must be served in the manner of a summons. (Engbretson & Co. v. Harrison (1981) 125 Cal.App.3d 436, 444.) Plaintiff may also modify its request for default

judgment to seek only those damages specified in the complaint.

Disposition

Plaintiff MF Downtown

Properties LLC's request for default judgment is denied without prejudice.